UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Interconnection of Large Loads to the Interstate Transmission System	))))	Docket No. RM26-4-000

REPLY COMMENTS OF ENGIE NORTH AMERICA, INC.

(December 5, 2025)

Pursuant to the Federal Energy Regulatory Commission's ("Commission") Notice Inviting Comments on the Department of Energy's ("DOE") proposed advance notice of proposed rulemaking[1] ("Proposed ANOPR") issued on October 27, 2025[2] ("Notice Inviting Comments"), in the above captioned proceeding, ENGIE North America, Inc.[3] ("ENGIE") respectfully submits for the Commission's consideration these reply comments supporting the Commission's and DOE's initiative to overcome the challenges and maximize the opportunities presented by large loads and hybrid facilities interconnection. Our reply comments focus on the discreet issues raised by other commenters related to (1) needed reforms to the Commission's Public Utility Holding Company Act (PUHCA) regulations[4] to allow independent power producers ("IPP") to make direct sales to large loads without losing PUHCA exemptions for

[1] Interconnection of Large Loads to the Interstate Transmission System, Notice Inviting Comments, Docket No. RM26-4 (Oct. 27, 2025) ("Proposed ANOPR").
[2]Notice Inviting Comments, Docket No. RM26-4 (Oct. 27, 2025).
[3] ENGIE is a subsidiary of ENGIE SA, a global energy company and a leader in low-carbon energy systems with a mission to accelerate the transition towards a carbon-neutral world. Globally, ENGIE owns and operates over 110 GW of power generation, including 40 GW of renewable generation, the largest natural gas distribution network in Europe, 2,485 miles of transmission lines, and is a leading energy supplier to commercial and industrial customers. In the United States, where ENGIE has been engaged for decades, we own and operate over eleven GW of renewable generation and battery energy storage systems ("BESS") and have several major partnerships with universities and medical campuses to manage their energy usage and decarbonization efforts.
[4] 18 C.F.R. Part 366.

upstream owners, and (2) the necessity to issue a durable final rule to protect against lengthy litigation leading to further delays to the interconnection of large loads and hybrid facilities.

I. COMMENTS

a. The Commission Should Consider Removing Public Utilities Holding Company Act (PUHCA) Regulatory Impediments to Data Center Development.

ENGIE has reviewed and supports initial comments recommending that the Commission provide blanket PUHCA exemptions for IPPs that sell directly to hybrid facility loads.[5] The comments highlight the inability of IPPs that are also exempt wholesale generators ("EWG") to own and operate the generation component of hybrid facilities and make direct sales to load. Reforms to PUHCA that allow IPPs to make direct sales to large loads without losing PUHCA exemptions for upstream owners would facilitate the interconnection and service of new large loads to the electric grid.

In ENGIE's experience, to retain the EWG designation in a sale of electricity directly to a retail customer we are required to "sleeve" transactions by engaging a third party retail service provider for each transaction who then sells directly to large loads. Having to "sleeve" the transactions creates unnecessary barriers and is a significant impediment to power sale arrangements between IPPs and large loads because it increases costs and reduces transaction efficiency.

Further, ENGIE believes that by granting a blanket exemption, or taking some other action that results in the same benefit to IPPs and large loads as recommended in initial comments, that the Commission's actions would be consistent with the Administration's efforts to reduce unnecessary federal regulations, and in line with President Trump's Executive

[5] *See, e.g.,* EDF Power Solutions, Inc., Docket No. RM26-4-000 (November 21, 2025), p. 5.

Order 14219. Specifically, the Executive Order objects to regulations that, "harm the national interest by significantly and unjustifiably impeding technological innovation, infrastructure development… economic development, energy production…"[6] Permitting IPPs to file only one request, instead of individual requests for each transaction would greatly reduce the barriers to the development of hybrid large load interconnections.

b. The Commission Should Finalize a Rule that is Legally Durable and Provides Regulatory and Legal Certainty.

ENGIE has also reviewed and supports initial comments urging the Commission to ensure that its authority is grounded in a clear and legally durable jurisdictional foundation.[7] Clear, consistent and legally defensible rules are essential for IPPs and all stakeholders to foster long-term investment and to bring large load interconnection to fruition. Clear rules reduce ambiguity, lower compliance costs, and minimize the risk of litigation.

One way to ensure validity and durability of the final rule is to respect and account for the limits of federal authority and avoid interfering with areas under state jurisdiction and control.

A second way to ensure validity and durability of the final rule is to issue a Notice of Proposed Rulemaking ("NOPR") with a reasonable timeframe for comment. ENGIE recognizes the exceedingly tight timeline imposed by the DOE and under which the Commission is operating. Even still, it will be important for stakeholders to have a better sense of a potential framework and draft regulatory language on which to provide further comment before finalization.

[6] Executive Order.
[7] *See, e.g.,* Solar Energy Industries Association, Docket No. RM26-4-000 (November 21, 2025), p. 4-9.

II. CONCLUSION

ENGIE respectfully requests that the Commission accept its reply comments and recommendations regarding the Proposed ANOPR. It is essential that the Commission seize this opportunity to establish clear and reasonable rules to facilitate the efficient, rapid, and reliable interconnection of new large loads and hybrid facilities.

Respectfully submitted,

/s/ *Sarah Bresolin Silver*

Sarah Bresolin Silver
Vice President
Government and Regulatory Affairs
1360 Post Oak Blvd.
Houston, TX 77056
(617) 717-4535
sarah.bresolin@engie.com

CERTIFICATE OF SERVICE

The undersigned certifies that a copy of this pleading has been served this day upon each person designated on the official service list compiled by the Secretary in this proceeding.

Dated at Boston, MA this 5th day of December 2025.

/s/ Sarah Bresolin Silver

Sarah Bresolin Silver
Vice President
Government & Regulatory Affairs
ENGIE North America, Inc.
1360 Post Oak Blvd.
Houston, TX 77056
(617) 717-4535
sarah.bresolin@gmail.com